

[2 & 3 GEO. 5.] *Land Drainage (Billingham)* [Ch. cxxiv.]
Provisional Order Confirmation Act, 1912.



CHAPTER cxxiv.

An Act to confirm a Provisional Order under the Land Drainage Act 1861 in the matter of a proposed drainage district in the Parishes of Billingham Wolviston Grindon Norton and Stockton-on-Tees in the County of Durham. A.D. 1912.
[7th August 1912.]

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Act 1861: 24 & 25 Vict. c. 133.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Land Drainage (Billingham) Provisional Order Confirmation Act 1912. Short title.

A.D. 1912.

SCHEDULE.

LAND DRAINAGE ACT 1861.

PROVISIONAL ORDER.

*In the matter of a proposed Drainage District in the Parishes
of Billingham Wolviston Grindon Norton and Stockton-
on-Tees in the County of Durham.*

1. The Board of Agriculture and Fisheries in pursuance of the powers vested in them by the Land Drainage Act 1861 and the Board of Agriculture and Fisheries Acts 1889 to 1909 do by this Provisional Order constitute the lands shown on a plan sealed by the Board and thereon coloured pink and green a separate drainage district under the Land Drainage Act 1861.

2. And they do further by this their Provisional Order make the following regulations with respect to the Drainage Board (that is to say):—

(A) The Drainage Board for the said district shall consist of eleven members:

(B) The following persons shall be members of the first Drainage Board:—

Robert Atkinson of Brook House Billingham in the county of Durham;

Thomas Burton Bainbridge of Arncliffe Billingham aforesaid;

Henry John Curry of 136 High Street Stockton-on-Tees in the said county;

Thomas Hornsby of the Rating Department North-Eastern Railway Company York;

Edwin Maughan of Church Farm Billingham aforesaid;

David Watson Meiklejohn of Wynyard Stockton-on-Tees aforesaid;

Thomas Herbert Norton of 7 Little College Street Westminster in the county of London;

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The Reverend James Ousey of the Vicarage Billingham A.D. 1912.
aforesaid ;

John William Page Page of Norton in the county of
Durham ;

Samuel Messiter Rowlandson of The College in the
city of Durham ;

John Thomas Scott of 3 Finkel Street Stockton-on-Tees
aforesaid :

- (c) The first meeting of the Drainage Board shall be summoned by a notice under the hands of any two or more members of the Drainage Board which shall be published in some newspaper circulating extensively in the said district and shall be posted at the principal entrance doors of the places of public worship in the said parishes of Billingham Wolviston Grindon Norton and Stockton-on-Tees at least fourteen days before the day of meeting :
- (d) The qualification of any subsequent member of the Drainage Board shall be that he shall be (1) the proprietor of not less than ten acres of land within the said district or (2) the heir apparent of a proprietor (such proprietor not being himself a member of the Board) of not less than ten acres of land within the said district or (3) the occupying tenant yearly or otherwise of not less than fourteen acres of land within the said district or (4) the agent of a proprietor of not less than ten acres of land within the said district such agent acting under a written appointment and his principal not being a member of the Board :
- (e) The members of the first Drainage Board shall vacate their offices on the first Thursday in September in the year following that in which this Provisional Order shall have been confirmed by Parliament :
- (f) The electors for members of the Drainage Board shall be the persons who were during the year immediately preceding such election liable to be rated to any drainage rate of the said district leviable by the Drainage Board and have paid all such rates (if any) levied and due from them at the time of such election.

3. For the purpose of any rate to be levied by the Drainage Board the land within the said district belonging to the North Eastern Railway Company and lying within the fences inclosing the railway track shall not be assessed on the basis of a higher value than that

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A.D. 1912. of the lands immediately adjacent thereto now belonging to the said
— railway company which are coloured green on the said sealed plan.

In witness whereof the Board of Agriculture and Fisheries have
hereunto set their official seal this nineteenth day of April
nineteen hundred and twelve.

(L.S.)

T. H. ELLIOTT
Secretary.

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